SOCIALNOW

Terms of Service

These terms apply to every quote, agreement and every use of SocialNow OS. By creating an account in the OS you agree to them. The Dutch version is the binding one.

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The Dutch text is the binding version. The current version is always at socialnow.nl/voorwaarden

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1. Definitions

Contractor: SocialNow, Amstelstraat 43G, 1017 DA Amsterdam, the Netherlands, Chamber of Commerce 77146301. Client: the counterparty of the contractor, including anyone who creates an account in SocialNow OS. Agreement: the agreement for services, including the use of SocialNow OS.

2. General

These terms apply to every quote and agreement between the contractor and a client. Deviations are only valid when both parties record them explicitly in writing. If a provision is void or annulled, the other provisions remain in force and the parties agree on a replacement that stays as close as possible to the original intent.

3. Performance

The contractor performs the agreement to the best of its knowledge and ability and may have work carried out by third parties. The client provides all information needed for performance in time. If it is not provided, the contractor may suspend the work and charge the extra costs at its usual rates. The contractor is not liable for damage caused by relying on incorrect or incomplete information from the client. When work is delivered in phases, the contractor may postpone a next phase until the client has approved the previous one in writing. The client indemnifies the contractor against third-party claims related to the performance that are attributable to the client.

4. Changes

If it turns out during performance that the work has to be changed or extended, the parties adjust the agreement in time and in consultation. If that has financial or qualitative consequences, the contractor informs the client, including the effect on a fixed or periodic price. Extra costs caused by circumstances attributable to the contractor are not charged.

5. Duration

The agreement is entered into for an indefinite period unless agreed otherwise. A deadline for completing work is not a strict deadline.

6. Prices

All prices exclude VAT and other levies and exclude costs made in the context of the agreement, unless stated otherwise. Without a fixed or periodic price the contractor's usual hourly rate applies to the hours actually spent. The contractor may raise prices and rates and informs the client in time, also when purchase rates rise between quote and delivery or when the amount of work was underestimated through no fault of the contractor.

7. Invoicing and payment

On acceptance of a quote a down payment of 50% of the total is due within the payment term on the invoice. The remainder is paid within 14 days of the invoice date. Objections to the amount of an invoice do not suspend the obligation to pay. If payment is not received, a reminder follows by e-mail with a 7-day term; after that the client is in default by operation of law and a demand follows with a 7-day term and € 49.95 administration costs excluding VAT. After that the contractor may hand the claim to a collection agency; all reasonable extrajudicial and judicial costs and interest are for the client. Services paid in advance or periodically are delivered only after payment is received; if payment stays out, the contractor may suspend or end services. The client agrees to invoicing by e-mail, checks their own inbox and spam folder, and reports a changed e-mail address in time.

8. Revisions and warranty

Where a right to revisions is agreed, the contractor may allow extra revisions case by case when the client's remarks are reasonable. Both parties may terminate the agreement in writing or by e-mail. If the client terminates early, the amount from the additional terms is due, or otherwise the invoices for the work done so far. If the contractor terminates, it arranges the handover of remaining work in consultation, unless the termination is attributable to the client; extra handover costs are for the client.

9. Cancellation

The client waives the right of withdrawal and the 14-day cooling-off period for distance purchases: once signed or accepted online, the order is final immediately. If the client terminates early, the down payment is due, plus the invoices for the work done and € 39 cancellation costs excluding VAT.

10. Suspension and dissolution

The contractor may suspend performance or dissolve the agreement if the client does not fulfil its obligations or only partly, if there is good reason to fear it will not, if the services are abused or used for illegal purposes, if the client causes damage to third parties, if requested security is not provided, or for another well-founded reason. On dissolution the contractor's claims become immediately due. The contractor always keeps the right to claim damages.

11. Liability

The contractor is not liable for direct or indirect damage from the use of its services or products. If the contractor is liable for direct damage after all, that liability is limited to at most once the total price of the part of the order it concerns, and for orders longer than three months to the amount due over the last three months. Direct damage only covers the reasonable costs of establishing cause and extent, of making the deficient performance meet the agreement, and of preventing or limiting damage. The contractor is never liable for consequential damage, lost profit, missed savings or business interruption.

12. Indemnities

The client indemnifies the contractor against third-party claims about intellectual property on materials or data supplied by the client. Supplied files and software are free of viruses and defects.

13. Force majeure

Neither party is obliged to perform when prevented by a circumstance that is not its fault and not for its account, including all external causes beyond the contractor's control. Obligations are suspended during force majeure; if it lasts longer than two months, either party may dissolve the agreement without compensation. Parts already performed with independent value may be invoiced separately.

14. Confidentiality

The parties keep confidential all information that is logically confidential or marked as such. If the contractor has to disclose confidential information under a court order or legal provision, it owes no compensation.

15. Copyright and intellectual property

With a custom OS and with every package on SocialNow Connect, the client becomes the owner of what the contractor delivers for it: the website, the system, the branding, the content and the ads. Ownership passes as soon as the client has paid the fee for it in full.

With the standard SocialNow OS, the client owns its account and the data in it. The contractor only looks along if the client gives it that role itself, for personal help with the software, and only while that role is open.

Knowledge and tools stay with whoever owns them. The underlying software of SocialNow OS, shared components and building blocks, methods and templates remain the contractor's; software, images and services of third parties, such as Odoo and stock images, remain their owners' and fall under their own licence. The client receives the right of use needed to use the delivered work. The contractor may use the knowledge gained through the work for other purposes as long as no confidential information reaches third parties.

The client agrees that its logo, the designs made and its experiences may be used recognisably for promotion, unless they contain sensitive or confidential information; the client may object, after which the contractor does not publish or removes where possible.

16. Disputes and governing law

The parties do their utmost to settle a dispute in consultation. The court in the contractor's place of business has exclusive jurisdiction, unless the subdistrict court is competent. Dutch law applies to these terms and every

agreement. The contractor may change these terms and informs the client; the current version is always at socialnow.nl/voorwaarden.

17. SocialNow OS: your data and control

SocialNow OS is the online environment at app.socialnow.nl in which the client manages its website, customers, content and advertising. Whoever creates an account agrees to these terms and to the privacy policy at socialnow.nl/privacy.

SocialNow never sells this data, never shares it with other customers and never uses it for third-party advertising. Data from connected sources such as Odoo, Meta and Google is read only for the client's own workspace; the keys the client enters are stored encrypted and never shown.

The client remains the owner of its data and can delete its account at any time under Account in the OS. Access is closed and erasure is handled under the privacy policy; statutory retention duties continue to apply.

The OS is provided as is and is continuously developed. SocialNow gives no guarantee of uninterrupted availability and may change or end features. The client does not use the OS for illegal purposes, spam or abuse of connected platforms and complies with the terms of those platforms.

Your data belongs to you. You control your own workspace, the tools you connect and the instructions you give.

We do not track your behaviour or record your screen. We do not use your business data for our own product development. Feedback comes from personal contact.

Necessary security and error logs keep the system safe and working. Support access is limited to authorised people and is logged.

Software as a tool. The software connects your tools into a personal or custom system tailored to your wishes. SocialNow is the service layer on top of the software. Your data and your own connections remain under your control.

Additional: hosting

For hosting and systems the contractor gives no guarantee of minimum speeds, uninterrupted operation or availability; damage from these causes, including consequential damage, cannot be recovered. The contractor is not liable for content placed by the client; damage from abuse is recovered from the client. Subscriptions are cancelled in writing at the end of the contract; early cancellation is not possible and there is no refund. The contractor may end the service immediately on suspicion of illegal activity or non-payment; the obligation to pay continues until the next cancellation date. Domain registrations run for one year and renew yearly; other services such as e-mail and web hosting run for three months with tacit renewal. The notice period is one month and notice must be received at least two days before the new period starts.

Additional: web solutions

For the design of a website, app or user interface the client is entitled to two revisions of the initial design. After written approval a one-month warranty applies to the working of the product in the state in which it was delivered. Changes by anyone other than the contractor void the warranty. On early cancellation the down payment is due, plus the invoices for the work done and € 39 cancellation costs excluding VAT; interim results are made available where reasonably possible.

Additional: design and imagery

For a design the client is entitled to two revisions of the initial design. For data supplied by the client and used in a design, the contractor is not liable for typing or other errors; checking lies with the client and the warranty lapses. For design including print, the print quality is guaranteed, with the printer's proofs being binding; slight deviations in colour and quality can occur and the contractor's assessment of them is binding. On early cancellation the same costs apply as for web solutions.